

PLEADING, IN CIVIL CASES—*Continued.*

- Defendant may plead as many matters as he judges necessary, provided he do not plead and demur to the whole, 332 § 109
- Plaintiff, in suit on penal bond, may assign any number of breaches, 330 § 96
- The consideration of a writing under seal, may be impeached by special plea, 340 § 153
- Private acts of assembly need not be specially pleaded, 341 § 154
- Non est factum* must be pleaded on oath, 74 § 16. 332 § 109. 340 § 152
- Plea in abatement must be sworn to, unless its truth otherwise appear, 332 § 110
- Declaration need not accompany process, 335 § 124
- Declaration shall be filed within first three days of return term, or suit dismissed at attorney's cost, 332 § 111
- Defendant shall plead or demur within next three days, or plaintiff may have judgment by default, *ib.* *ib.*
- All other pleadings shall be filed in alternate periods of three days, or party failing shall be subject to *non pros.* or judgment, 333 *ib.*
- But all the pleadings shall be made up during return term, *ib.* *ib.*
- Pleadings may be made up, though there be a failure of court, 295 § 34
- When special pleading is necessary, time for pleading may be extended, 333 § 111
- On judgment overruling plea in abatement, plaintiff shall recover full costs up to that time, *ib.* *ib.*
- Declaration, plea, or replication, setting forth a lost instrument not to be received unless accompanied with an affidavit of its truth, *ib.* § 112
- Declaration in attachment may be filed first term after demand falls due, *ib.* § 113
- Defendant in attachment may plead without special bail, 61 § 13

PLEADING, IN CRIMINAL CASES.

- On plea of guilty, jury to be empaneled to assess fine, 247 § 1
- Defendant standing mute, plea of not guilty to be entered, 462 § 9
- Dilatory, to indictment to be verified by affidavit, *ib.* § 10
- Indictments for perjury and subornation of perjury, how framed, 444 § 35
- Indictments to lie in all cases which were allowed to be prosecuted on presentments, 479 § 21
- Scire facias*, how framed, served, &c., 481

PLEADINGS, IN EQUITY—See "Chancery."

PLURIES WRIT.

- May issue after *non est inventus* to an *alias capias*, 54 § 1

POISON.

- Penalty for selling without a label, 436 § 6
- To slave without written order, *ib.* § 7
- Penalty for poisoning waters, 419 § 13

POLYGAMY.

- Definition and punishment, 432 § 4
- Five years' absence without intelligence from the absent party, or divorce by competent court, justifies second marriage, *ib.* § 5